

replication pleaded, is not sufficient in law, for him the said Thomas Bonham to maintain his said action, against them the said Henry Atkins, George Turner, Thomas Moundford, John Argent, John Taylor, and William Bowden, and that they to that plea in manner and form aforesaid by replication pleaded, need not, nor by the law of the land are bound to answer, and this they are ready to verify, whereupon they pray judgment, And that the said Thomas Bonham may be barred from having his action aforesaid against them, &c. And the aforesaid Thomas Bonham, forasmuch as he sufficient matter in law, to maintain his action aforesaid, against the said Henry Atkins, George, Thomas Moundford, John Argent, John Taylor, and William Bowden, above hath alleged, which he is ready to verify, which matter the aforesaid Henry, George, Thomas Moundford, John Argent, John Taylor, and William Bowden, do not deny, nor to the same any ways answer, but the same averment altogether to admit do refuse, as before prays judgment and his damages, by occasion of the trespass and imprisonment aforesaid to be adjudged, to him, &c. And because the justices here will advise themselves of and upon the premises aforesaid, whereof the parties have put themselves upon the judgment of the Court aforesaid, before that they give their judgment thereof, day is given to the parties here, until in eight days of St. Hilary, to hear their judgment thereof, because the same justices here thereof are not yet, &c.

[113 b] DR. BONHAM'S CASE.

Hil. 7 Jac. 1.

In an action for false imprisonment, brought against the President and Censors of the College of Physicians and Others, the defendants justified under the charter for the incorporation of the college, and the stat. 14 and 15 Hen. 8. cap. 5. by which the charter is confirmed, and the stat. 1 Mary. cap. 9. enlarging the power of the censors, and set forth that the plaintiff practised physick not being admitted, &c.: that being examined, he was found insufficient, and forbidden to practise: but, notwithstanding such prohibition, he afterwards practised for a month or more, whereupon they amerced him 5l. to be paid to them at their next assembly, &c. and likewise enjoined him to forbear practising any more until he be found sufficient, &c. under pain of imprisonment: that he continuing still to practise, was further fined and ordered to be committed: that being questioned, if he would submit to the said college? he replied, that he had practised and would practise without leave of the college; and denied that by the statute they had any authority over him, he having taken his degree of Doctor of Physick, within the university, regularly; whereupon the censors ordered him to prison, which was executed accordingly. The plaintiff in his replication shewed the clause in the Act upon which he relied, and averred that he had taken the degree of Doctor of Physick in the University of Cambridge, and practised physick in the City of London as he well might: upon demurrer to this replication judgment was give for the plaintiff.

Resolved,—1. The censors had no power to commit the plaintiff for any of the causes mentioned in the bar. Because the said clause which gives power to the said censors to fine and imprison does not extend to the clause, "That none in the said city, &c. exercise the said faculty, &c." which clause prohibits every one from practising in London, &c. without licence of the president and college, but extends only to punish those who practise in London, *pro delictis suis in non bene exequendo, faciendo, et utendo facultate medicinæ*, so that their power is limited to the ill and not to the good use and practice. 2. Admitting the censors had power, yet they have not pursued it;—1. Because the censors alone have power to fine and imprison whereas here the president and censors imposed this fine of 5l. 2. The plaintiff was summoned to appear before the president and censors, and for not appearing was fined 5l., whereas the president had no authority. 3. The fines imposed by them by virtue of this Act belong to the King and not to them, and yet the fine is limited to be paid to themselves, &c. and for nonpayment they have imprisoned